

Omprakash Agrawal v. Dakshinachal Vidyut Vitran Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 December 2019 · Writ-C No. 42575 of 2019 · **Writ disposed; petitioner to appear before EE for a speaking final order; coercive action stayed six weeks; s.127 if aggrieved.**

HEADNOTE

A writ seeking certiorari against a provisional assessment dated 16.05.2019 was disposed of without examining the assessment. The consumer was directed to appear before the Executive Engineer with objections and evidence; the EE to pass a speaking final order within four weeks; no coercive action for six weeks or until disposal of the objection, whichever is earlier; liberty to appeal under Section 127 of the Electricity Act, 2003 against that final order; the recovery citation to revive automatically if the consumer failed to appear.

FACTUAL SUMMARY

Omprakash Agrawal challenged a provisional assessment dated 16 May 2019 issued by Dakshinachal Vidyut Vitran Corporation Ltd., seeking certiorari. He alleged that the licensee was taking coercive action without a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department appeared. The Division Bench did not examine the assessment or the Supply Code complaint on the merits.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

provisional assessment — speaking final order and section 127 appeal

HOLDING

A writ challenging a provisional assessment is not decided on the merits. The consumer is directed to appear before the Executive Engineer with objections and evidence so that a speaking final order may be passed; coercive recovery is stayed for a limited period; if aggrieved by the final order the consumer may appeal under Section 127 of the Electricity Act, 2003; failure to appear revives the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the petitioner's objections to the provisional assessment, the Court left any further challenge to an appeal under Section 127 and did not quash the assessment on the writ. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment The Court did not entertain the certiorari challenge to the provisional assessment dated 16.05.2019 on the merits; it required a speaking final order first, with Section 127 available only against that final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT DATED 16.05.2019 AND ALLEGED BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court did not examine the assessment or the Supply Code complaint on the merits. ¶ 1